

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE
RESOLUTION 1042

By: Sneed

AS INTRODUCED

A Resolution emphasizing the State of Oklahoma's interest in CompSource Mutual Insurance Company; recognizing the existence of CompSource Mutual Insurance Company as an entity ensuring compensation under current workers' compensation laws; emphasizing that all monies and assets of CompSource Mutual Insurance Company are held in trust; and emphasizing the public's interest in CompSource Mutual Insurance Company.

WHEREAS, CompSource Oklahoma was allowed by the Legislature to become a mutual insurance company, CompSource Mutual Insurance Company, effective January 1, 2015, for the purpose of insuring employers against liability for compensation under the Administrative Workers' Compensation Act, the Oklahoma Workers' Compensation Code, and previous workers' compensation laws; and

WHEREAS, because of the State Insurance Fund, the predecessor of CompSource Mutual Insurance Company, was created with taxpayer funds, the State of Oklahoma continues to have an important and vital interest in the operation of the company; and

1 WHEREAS, CompSource Mutual Insurance Company exists for the
2 purpose of assuring compensation for the persons entitled thereto
3 provided by workers' compensation laws, and for the further purpose
4 of insuring persons, firms, and corporations against loss, expense,
5 or liability by reason of bodily injury, death by accident,
6 occupational disability, or occupational disease suffered by
7 employees, for which the insured may be liable or have assumed
8 liability; and

9 WHEREAS, CompSource Mutual Insurance Company may further provide
10 insurance for employers against liability incurred as the result of
11 injuries sustained by employees engaged in employment subject to the
12 Longshore and Harbor Workers' Compensation Act, 33 U.S.C., Section
13 901 et seq., or employees engaged in employment subject to Title IV
14 of the Federal Coal Mine Health and Safety Act of 1969 as amended by
15 the Black Lung Benefits Act of 1972, as enacted or as may be amended
16 by the Congress of the United States; and

17 WHEREAS, the Supreme Court of Oklahoma has determined that the
18 creation of CompSource Mutual Insurance Company, as a successor to
19 the State Insurance Fund and CompSource Oklahoma, was a proper use
20 of legislative power under the Constitution of Oklahoma; and

21 WHEREAS, the Supreme Court found, and the Legislature affirms,
22 that all monies and other assets of CompSource Mutual Insurance
23 Company are held in trust for the benefit of the insured employers
24 or policyholders.

1 NOW, THEREFORE, BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES
2 OF THE 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

3 THAT it is a matter of public interest to establish public
4 policy that Oklahoma maintains a statutory workers' compensation
5 system in which employers may obtain insurance to cover their
6 liability for benefits for workers injured in the course of their
7 employment as prescribed by the workers' compensation laws.

8 THAT CompSource Mutual may never transition into a stock
9 insurance company.

10 THAT CompSource Mutual can only transition into a mutual
11 insurance holding company if it pays every policyholder their fair
12 and equitable ownership interest as owners and trustees of
13 CompSource Mutual.

14 THAT CompSource Mutual Insurance Company shall not be considered
15 a state agency, public body, department, or any other term used to
16 describe an entity which is a part of the Executive Branch of the
17 State of Oklahoma under any Oklahoma statute or regulation, except
18 as otherwise provided for in this resolution.

19 THAT CompSource Mutual Insurance Company is hereby prohibited
20 from pursuing any means to change its corporate structure from the
21 mutual insurance company previously allowed by the Legislature
22 except for the change to a mutual insurance holding company.

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24 60-2-17212 TKR 03/25/26